

Court No. - 29

Case :- WRIT - C No. - 54076 of 2016

Petitioner :- Kumar Share Brokers Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Arvind Kumar Tripathi, Kunwar Tejandra Bahadur

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Tarun Agarwala, J.

Hon'ble Ravindra Nath Kakkar, J.

Heard the learned counsel for the petitioners and Sri Chandan Agawal, the learned counsel for the Electricity Department.

The petitioners contend that the multiplying factor mentioned in the bill is incorrect and therefore, the electricity bill which is being provided to him shows incorrect amount. In this regard, the petitioner has made an application, which is pending consideration before the Executive Engineer.

Clause 6.5 of the Electricity Supply Code, 2005 (hereinafter referred to as the Code, 2005) provides for rectification of the electricity bill.

We, accordingly, dispose of the matter directing the Executive Engineer, respondent no. 4 to consider the petitioner's application as an application filed under Clause 6.5 of the Code, 2005. The Executive Engineer will process the application and pass appropriate order within four weeks from the date of presentation of a certified copy of this order after giving an opportunity of hearing to the petitioners.

Order Date :- 11.11.2016

YK

(Ravindra Nath Kakkar, J.) (Tarun Agarwala, J.)